

LEGISLATIVE BILL 50

Approved by the Governor June 4, 2025

Introduced by DeKay, 40; Dover, 19; Hansen, 16; McKeon, 41; Murman, 38; Quick, 35.

A BILL FOR AN ACT relating to revenue and taxation; to amend section 77-6204, Reissue Revised Statutes of Nebraska; to change provisions relating to the distribution of the nameplate capacity tax; and to repeal the original section.

Be it enacted by the people of the State of Nebraska,

Section 1. Section 77-6204, Reissue Revised Statutes of Nebraska, is amended to read:

77-6204 (1) The county treasurer shall distribute all revenue received from the Department of Revenue pursuant to section 77-6203 as follows:

(a) Five percent of such revenue shall be distributed to the community college area in which the renewable energy generation facility is located; and

(b) The remainder of such revenue shall be distributed to local taxing entities which, but for such personal property tax exemption, would have received distribution of personal property tax revenue from depreciable personal property used directly in the generation of electricity using wind, solar, biomass, or landfill gas as the fuel source.

(2) A local taxing entity's status as eligible for distribution under subdivision (1)(b) subsection (1) of this section shall not be affected when and if the net book value of personal property used directly in the generation of electricity using wind, solar, biomass, or landfill gas as the fuel source becomes zero. A local taxing entity's status as eligible for distribution under such subdivision subsection shall be affected by the disposal of all of the exempt depreciable personal property used directly in the generation of electricity using wind, solar, biomass, or landfill gas as the fuel source.

(3) The distribution to each eligible local taxing entity under subdivision (1)(b) of this section shall be calculated by determining the amount of taxes that the eligible local taxing entity levied during the taxable year and dividing this amount by the total tax levied by all of the eligible local taxing entities during the year. Each eligible entity's resulting fraction shall then be multiplied by the amount of revenue available for distribution pursuant to subdivision (1)(b) of this section ~~distributed to the county treasurer by the department~~ to determine the portion of such revenue due each local taxing entity.

(4) The Department of Revenue shall not retain any revenue collected pursuant to sections 77-6201 to 77-6204 for distribution, use, transfer, pledge, or allocation to or from the General Fund.

Sec. 2. Original section 77-6204, Reissue Revised Statutes of Nebraska, is repealed.